

1.

CASE #	CASE NAME	HEARING NAME
CVRI2302717	PREFERRED EMPLOYERS' INSURANCE COMPANY vs LION KING TRUCKING, INC	MOTION TO ENFORCE SETTLEMENT AT MEDIATION

Tentative Ruling:

Moving Party: Intervenor Prime Insurance Company
Responding Party: Plaintiff Armando Lopez

This is a personal injury action initiated on 6/6/2023 by Plaintiff Armando Lopez against Defendants Lion King Trucking, Inc. ("LKT"), Liuhe Weiye, Inc. ("Liuhe"), Yeston, Inc. The operative FAC, filed 12/12/24 asserts a sole cause of action for negligence.

On June 16, 2021, Plaintiff was operating a forklift at a warehouse in Eastvale run by his employer when the commercial truck operated by a LKT driver negligently pulled forward causing Plaintiff and the forklift he was operating to fall to the ground. Plaintiff sustained serious physical, emotional, and psychological injuries as a result.

Now, Intervenor Prime Insurance Company ("Prime") brings this motion to enforce the settlement and enter judgment pursuant to CCP § 664.6. Prime states that Liuhe and Prime reached a settlement with Plaintiff for \$50,000 at mediation. Afterwards, the parties exchanged various emails further confirming the settlement and discussing exchanging draft settlement agreements. During this discussion, Plaintiff indicated the settlement was off the table. Prime now seeks to enforce the agreement the parties reached at mediation.

In opposition, Plaintiff argues there is no signed settlement agreement or showing of mutual consent. Plaintiff argues that counsel's email from 4/23/2026 is not a writing within the definition of CCP § 664.6 and therefore, the motion must be denied.

In reply, Prime argues that counsel stated, "As you know, a settlement was reached at mediation held on April 23, 2026" and that such an admission should end the dispute over whether the parties agreed to a settlement.

ANALYSIS

CCP § 664.6 provides:

If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court

may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.

Here, there is no signed settlement agreement nor any oral stipulation before the court. All parties to be bound must agree to the material terms and thus, absent oral assent in open court, a written settlement is enforceable under CCP § 664.6 only if signed by the party against whom enforcement is sought and by the party seeking to enforce it. (*Harris v. Rudin, Richman & Appel* (1999) 74 Cal.App.4th 299, 305; *Gallo v. Getz* (1988) 205 Cal.App.3d 329, 333.)

While Plaintiff's counsel communicated that the parties agreed to a settlement at mediation, the parties never finalized the settlement agreement or terms therein. There is nothing indicating any party signed any agreement. A trial court cannot apply the summary procedure for a judgment enforcing a settlement agreement where not all of the parties signed the settlement agreement. (*J.B.B. Investment Partners, Ltd. v. Fair* (2014) 232 Cal.App.4th 974, 992 [finding error where the trial court enforced a settlement agreement under § 664.6 based on it being "more likely than not" a party had agreed to settle after sending an email indicating acceptance but never signing a formal settlement agreement].) While CCP § 664.6(b)(2) does indicate a signature from a party's attorney will suffice, there is no such signature – only an email mentioning a "settlement". There is no enforceable settlement agreement for the court to enter judgment upon.

For this reason, the request to enforce the settlement agreement pursuant to CCP § 664.6 is denied.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2406368	DURO vs HYUNDAI MOTOR AMERICA, A CALIFORNIA CORPORATION	MOTION TO COMPEL VEHICLE INSPECTION

Tentative Ruling:

Moving party: Defendant Honda Motor America
Responding party: Plaintiff Lorina Margaret Duro

This is a lemon law action. On November 12, 2024, Plaintiff Lorina Margaret Duro ("Plaintiff") filed a Complaint against Defendant Honda Motor America ("Defendant") for: (1) breach of express warranty in violation of the Song Beverly Act; (2) breach of implied warranty in violation of the Song Beverly Act; and (3) violation of section 1793.2 of the Song Beverly Act. In the Complaint, Plaintiff alleges that on March 24, 2022, she purchased a 2022 Hyundai Palisade (the "Vehicle"), on which Defendant issued a written warranty. (Complaint at ¶¶ 8-9.) The Vehicle was delivered to Plaintiff with defects to the engine, electrical, emission, structural, and suspension systems that impaired the use, value, and safety of the Vehicle. (Complaint at ¶¶ 10, 22, 26.)